

Court No. - 39

Case :- WRIT - C No. - 25996 of 2014

Petitioner :- Mohammad Khalid

Respondent :- Pashchimanchal Vidhyut Vitran Nigam Ltd. And 2 Others

Counsel for Petitioner :- R.P.S. Chauhan

Counsel for Respondent :- C.S.C.,Pranjal Mehrotra

Hon'ble Sanjay Misra,J.

Hon'ble Anant Kumar,J.

We have heard Sri R.P.S. Chauhan, learned counsel for the petitioner, Sri Pranjal Mehrotra for the Respondents No.1 & 2, who is Paschimanchal Vidhyut Vitran Nigam Ltd. as also learned Standing Counsel for the Respondent No.3.

The petitioner is aggrieved by the notice dated 31.03.2014 (Annexure-1 to the writ petition) whereby the Respondent No.2 has demanded arrears of electricity bill to the tune of Rs.4,46,038/- from the petitioner which should be paid failing which the proceedings in accordance with law for recovery of demand could be initiated against the petitioner. Learned counsel for the petitioner states that the petitioner has been regularly paying his bills in the past and also in the present. Learned counsel for the petitioner has stated that the petitioner had filed an application under the Legal Services Authority Act, 1987 before the Permanent Lok Adalat, Moradabad disputing the calculation method adopted by the respondent-Corporation in raising bills against the petitioner. He therefore states that the notice be set aside till the matter is finally decided by the Permanent Lok Adalat in light of Section 22(C) of the Legal Services Authority Act, 1987.

We have considered the submission of learned counsel for the parties and perused the record. Section 22(C) of the Act provides that before approaching any court he can make an application before the Permanent Lok Adalat for settlement of the dispute. The said provision does not in any manner indicate that because an application is pending before the Permanent Lok Adalat, the petitioner would not be entitled to raise the dispute on the quantum of the demand made against him under the provisions of Electricity Supply Code wherein Clause 6.5 provides for a competent authority of the Corporation to settle such disputed bills and arrears.

In view of the aforesaid circumstances and provisions of law, we do not find any reason to grant any relief of staying the recovery notice or issuing any mandamus as prayed for in this writ petition and provide that the petitioner if he is raising a dispute with respect to the demand notice sent by the Corporation may approach the competent authority under Clause 6.5 of the Electricity Supply Code, 2005.

The writ petition is disposed of.

No order is passed as to costs.

Order Date :- 8.5.2014

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